

25SMCV02454 25SMCV02454

County: los-angeles

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Case Number: 25SMCV02454 Hearing Date: July 1, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

KRISTYN YANCY ANTELIN,

Plaintiff,

v.

PALISADES GROWTH CAPITAL, et al.,

Defendants.

Case No.:

25SMCV02554

Hearing Date: 7/1/26

Trial Date:

4/24/28

[TENTATIVE] RULING RE:

Motion for Leave to File Third Amended Complaint

Background

On May 19, 2025, Plaintiff Kristyn Yancy Antelin ("Plaintiff") commenced this FEHA action against Defendants Palisades Growth Capital; Centre Partners Management LLC ("CPM"); Paul D'Addario ("D'Addario"); and DOES 1 through 25 (collectively, "Defendants").

On August 26, 2025, Plaintiff filed an Amendment to Complaint correcting Defendant Palisades Growth Capital's name to Palisades Management, LLC ("PML").

On November 18, 2025, Plaintiff filed the First Amended Complaint ("FAC") against Defendants, asserting causes of action for: (1) Gender Violence (Civ. Code § 52.4); (2) Battery; (3) Assault; (4) Negligence (Retention/Supervision); (5) Intentional Infliction of Emotional Distress; and (6) Violation of Labor Code Sections 226 and 1198.5.

On December 22, 2025, D'Addario filed an Answer to the FAC. On January 26, 2026, PML and CPM (collectively, "Corporate Defendants") filed a Demurrer to the Complaint, which was sustained with leave to amend on February 25, 2026. On March 12, 2026, Plaintiff filed the operative Second Amended Complaint ("SAC") against Defendants.

On June 2, 2026, Plaintiff filed the instant Motion for Leave to File Third Amended Complaint ("TAC"). On June 24, 2026, the Corporate Defendants filed an Opposition. On June 26, 2026, Plaintiff filed a Reply.

Legal Standard

The court may, in furtherance of justice and on any proper terms, allow a party to amend any pleading by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., section 473, subd. (a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.) The court may also, in its

discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., section 473, subd. (a)(1); Branick, *supra*, 39 Cal.4th at 242.) As judicial policy favors resolution of all disputed matters between the parties, leave to amend is liberally granted. (See *Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412.) The court may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (*Id.*) The court also has discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See *California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390).)

"Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576.)

A motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (*Id.*, rule 3.1324, subd. (b).)

Preliminary Matters

The Court briefly notes that the opposition was filed late per Code of Civil

Procedure Section 1005, subdivision (b). The opposition was due June 24, 2026, but the Corporate Defendants filed it on June 26, 2026. However, Plaintiff's reply brief substantively addresses the opposition. Thus, the Court will exercise its discretion and rule on the merits below. (See Cal. Rules of Court, rule 3.1300, subd. (d) ["If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate."]; Mann v. Cracchiolo (1985) 38 Cal.3d 18, 30 [210 Cal.Rptr. 762, 767, 694 P.2d 1134, 1139] overruled in part by Perry v. Bakewell Hawthorne, LLC (2017) 2 Cal.5th 536 on other grounds.)

Analysis

Here,

Plaintiff seeks to amend the SAC to add a ratification theory against the Corporate Defendants, i.e., that the Corporate Defendants failed to investigate, discipline, or terminate D'Addario for his alleged prior sexual harassment of other female workers at PML and CPM. (Mot. at 1:13-23.) Both the moving papers and supporting declaration set forth the page and line numbers where the proposed additions are to be made including a redlined copy. (Mot. at 5:5-28; Medler Decl., ¶¶9-12, 24, Ex. 1.) Likewise, Plaintiff's counsel of record, Sabrina Medler states that amendment is necessary to cure the deficiencies in the SAC. (Id., ¶13.) Ms. Medler further states that the facts supporting ratification developed incrementally over the course of discovery, thus it could not be pled earlier. (Id., ¶¶14, 19-22.) Moreover, Ms. Medler attests that the proposed amendments bolster support for Plaintiff's negligence claims already alleged against the Corporate Defendants and ensure all of Plaintiff's claims including the ratification theory, are properly pled in the interest of justice and judicial economy. (Id., ¶24.) Accordingly, the proposed amendment complies with California Rules of Court, rule 3.1324.

In

opposition, the Corporate Defendants argue that the proposed amendment is prejudicial because they have already expended costs, time, and resources briefing and arguing the demurrer to the FAC; met and conferred and prepared another demurrer to the SAC; opposed two motions for leave to amend; and responding to discovery directed to the negligence claim. (Opp. at 7:22-8:3; Leung Decl., ¶5.) Although the Corporate Defendants have expended time, resources, and costs associated with defending against the negligence claim, the trial in this matter is nearly two years away, so there is time to conduct

additional discovery on the new theory of liability; the proposed amendment only seeks to add an additional theory of liability as opposed to multiple new causes of action; and the theory of liability is based upon the same facts already alleged against the Corporate Defendants. Also, Plaintiff clarified that facts supporting the ratification theory was discovered gradually through discovery including Plaintiff's own document productions in October 2025; D'Addario's responses to Request for Admissions in December 2025; and the Corporate Defendants document production on April 30, 2026. (Medler Decl., ¶¶14-19.) Therefore, the Corporate Defendants fail to demonstrate that they would suffer prejudice in permitting the proposed amendment at this time.

Conclusion

Based on the foregoing, Plaintiff Kristyn Yancy Antelin's Motion for Leave to File Third Amended Complaint is GRANTED.

Dated: July 1, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court